

ELIZABETH II



1985 CHAPTER xxviii

An Act to empower The Scarborough Borough Council to maintain and work a cliff lift undertaking at Whitby and to maintain and work a cliff railway undertaking at Scarborough; and for other purposes.

[22nd July 1985]

WHEREAS—

(1) The borough of Scarborough (hereinafter referred to as “the borough”) is under the management and local government of The Scarborough Borough Council (hereinafter referred to as “the Council”):

(2) By virtue of the Local Government Act 1972 (hereinafter 1972 c. 70. referred to as “the Act of 1972”) the borough of Scarborough was constituted on 1st April 1974 comprising the former borough of Scarborough; the former urban districts of Filey, Scalby and Whitby; the former rural districts of Scarborough and Whitby; the former parishes of Folkton, Hunnamby, Muston, Reighton and the area common to the former parishes of Hawsker-cum-Stainsacre and Fylingdales (namely Fylingdales Moor):

(3) Certain local enactments were in force in the said former borough of Scarborough and by section 262 of the Act of 1972 it was provided that, subject to certain modifications, certain local statutory provisions should continue to apply to the area, things or persons to which or to whom they applied before that date:

S.I. 1983/619. (4) It was further provided by the said section 262 that certain local statutory provisions should cease to have effect at the end of 1984; but the Non-metropolitan and Welsh Counties (Local Statutory Provisions) Order 1983 made pursuant to the said section has subsequently provided that such local statutory provisions shall cease to have effect at the end of 1986:

(5) The management of the cliff lift undertaking at Whitby and of the cliff railway undertaking at Scarborough in the borough is by statute vested in the Council and it is expedient that it should remain so:

(6) It is expedient that the other provisions contained in this Act should be enacted:

(7) The purposes of this Act cannot be effected without the authority of Parliament:

(8) In relation to the promotion of the Bill for this Act the requirements of section 239 of the Act of 1972 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Citation and
commence-
ment.

1.—(1) This Act may be cited as the Scarborough Borough Council Act 1985.

(2) This Act shall come into operation on the expiry of a period of three months beginning with the date on which it is passed.

Interpretation.

2. In this Act—

“the borough” means the borough of Scarborough;

“the Council” means The Scarborough Borough Council;

“the cliff lift” means that part of the cliff lift undertaking which comprises the cars, shafts, tracks and motive power for the movement of the lift cars;

PART I
—cont.

“the cliff lift undertaking” means the cliff lift situate at Whitby in the borough commencing at a point on the seaward side of North Terrace, 72 metres from its junction with Argyle Road and including the tunnel from its base for a distance of 67 metres northwards to the Promenade and includes the stations, platforms, sheds and lands, buildings and property of every description and whatever nature which are for the time being vested in, occupied or administered by the Council for the purposes of Part II of this Act;

“the cliff railway” means the undertaking comprising the North Bay railway and the St. Nicholas railway;

“the North Bay railway” means the cliff railway situate at Scarborough in the borough commencing at a point at the junction of Peasholm Gap and Royal Albert Drive and continuing in a southerly direction up the hill to Alexandra Gardens together with all carriages, rails, plates and other apparatus, drains, approaches, yards, buildings, including station premises and facilities and land and property of every description and whatever nature which are for the time being vested in, occupied, administered or leased out by the Council for the purposes of Part III of this Act;

“the St. Nicholas railway” means the cliff railway situate at Scarborough in the borough and commencing at a point immediately to the east of the northern end of the Spa Bridge (also known as Cliff Bridge) and continuing in a south-easterly direction to a point at the junction of Valley Road and Foreshore Road; together with all carriages, rails, plates and other apparatus, drains, approaches, yards, buildings including station premises and facilities and land and property of every description and whatever nature which are for the time being vested in, occupied, administered or leased out by the Council for the purposes of Part III of this Act;

“telecommunication apparatus”, “telecommunications operator” and “telecommunication system” have the meanings respectively assigned to them by the Telecommunications Act 1984.

1984 c. 12.

PART II

CLIFF LIFT

3. The cliff lift undertaking shall continue vested in the Council. Cliff lift undertaking.

PART II
—cont.Council may
operate cliff
lift.

4. The Council may—

- (a) maintain the cliff lift undertaking; and
- (b) work the cliff lift for the conveyance of passengers.

Council may
charge.

5. The Council may demand and recover charges for the conveyance of passengers in the cliff lift.

Motive power.

6. The motive power of the cliff lift shall be electric power:

Provided that such electric power shall not be used in such a manner as to cause or be likely to cause any interference to any telecommunication apparatus of a telecommunications operator or with the operation of a telecommunication system.

PART III

CLIFF RAILWAY

Cliff railway
undertaking.

7. The cliff railway shall continue vested in the Council.

Council may
work cliff
railway.

8. The Council may—

- (a) maintain the cliff railway; and
- (b) work the cliff railway for the conveyance of passengers, vehicles and goods.

Council may
charge.

9. The Council may in respect of the cliff railway demand and recover charges for—

- (a) the conveyance of passengers; and
- (b) the carriage of vehicles and goods.

Motive power.

10. The motive power of the cliff railway shall be electric power:

Provided that such electric power shall not be used in such a manner as to cause or be likely to cause any interference to any telecommunication apparatus of a telecommunications operator or with the operation of a telecommunication system.

Restrictions on
operation of
North Bay
railway.

11. The Council shall not—

- (a) work the North Bay railway other than with a track gauge of 6 feet 6 inches; and
- (b) upon the North Bay railway—
 - (i) run any carriage not adapted for operating upon tracks laid at the gradient of those of the North Bay railway; and
 - (ii) run any carriage at a speed exceeding 6 kilometres per hour; and

(iii) run any engine, carriage or truck bringing any weight upon the rails by any one pair of wheels exceeding 1,750 kilograms.

PART III
—cont.

12. The Council shall not—

Restrictions on
operation of
St. Nicholas
railway.

(a) work the St. Nicholas railway other than with a track gauge of 7 feet 6 inches; and

(b) upon the St. Nicholas railway—

(i) run any carriage not adapted for operating upon tracks having been laid at the gradient of those of the St. Nicholas railway; and

(ii) run any carriage at a rate of speed exceeding 5 kilometres per hour; and

(iii) run any engine, carriage or truck bringing any weight upon the rails by any one pair of wheels exceeding 1,750 kilograms.

13. The Council may make byelaws for regulating—

Byelaws.

(a) the use of the cliff railway; and

(b) the conduct of persons using the railway.

14. The Council may lease the undertaking of the cliff railway, together with the rights, interests, powers, privileges and obligations vested in the Council other than those of section 13 (Byelaws) of this Act for a term not exceeding 21 years on such terms and conditions, subject to section 15 (Lessee to insure) of this Act as may be agreed between the Council and the lessee.

Lease of cliff
railway
undertaking.

15.—(1) If the Council exercise the powers of section 14 (Lease of cliff railway undertaking) of this Act any lessee to whom the undertaking of the cliff railway is leased shall during all such time as the undertaking of the cliff railway is assigned to him—

Lessee to
insure.

(a) maintain an approved public liability policy in the joint names of himself and the Council with an approved insurer providing maximum cover in respect of any one accident on or occasioned by the operation of the cliff railway of not less than £2,000,000 and in default thereof the Council may effect and maintain such policy and pay the premiums payable in respect thereof so that the premiums so paid and all incidental expenses shall be repaid by the lessee to the Council on demand; and

PART III
—cont.

(b) at the request of the Council produce to the Council such evidence as may be requisite for the purpose of proving compliance with the foregoing provisions of this section; and

(c) not work the cliff railway unless there is in force such a public liability policy as is referred to in paragraph (a) of this subsection.

(2) If the lessee fails to comply with subsection (1) (a) or (c) above he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding level 3 on the standard scale and if he fails to comply with subsection (1) (b) above he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding level 2 on the standard scale.

(3) The adequacy of the cover provided by a public liability policy maintained in accordance with this section shall be regularly reviewed by the lessee who at any time is required to effect and maintain the policy.

(4) In this section—

“approved” means approved by the Council;

“insurer” means any insurer authorised under the Insurance Companies Act 1982 to carry on in the United Kingdom insurance business of a relevant class or who has corresponding authorisation under the law of another member state.

1982 c. 50.

PART IV

MISCELLANEOUS AND GENERAL

Travel
concessions.
1964 c. 95.

16.—(1) The Travel Concessions Act 1964 shall have effect in relation to the cliff lift undertaking and the cliff railway as if the said undertaking and railway were respectively public service vehicle undertakings for the purposes of that Act and the lift cars and railway carriages were public service vehicles.

(2) In addition to any travel concessions authorised under subsection (1) above the Council may grant free travel on the said undertaking and railway to persons attending conferences held in the borough.

Application of
general
provisions of
Public Health
Act 1936.
1936 c. 49.

17. Section 304 (Judges and justices not to be disqualified by liability to rates) and section 328 (Powers of Act to be cumulative) of the Public Health Act 1936 shall have effect as if references therein to that Act included references to this Act.

18. The written consent of the Director of Public Prosecutions is needed for the laying of an information of an offence created by this Act by any person other than a party aggrieved, the Council or a constable.

PART III
—cont.
Restriction on
right to
prosecute.

19. The enactments specified in column (2) of the Schedule to this Act are repealed to the extent specified in column (3) of that Schedule.

Repeals.

Section 19.

SCHEDULE

ENACTMENTS REPEALED

Chapter (1)	Title or short title (2)	Extent of repeal (3)
4 & 5 Geo. 5 c. cxxxii.	Local Government Board's Provisional Orders Confirmation (No. 12) Act 1914.	Paragraph (2) (f) of article 1 of the Whitby Order 1914.
15 & 16 Geo. 5 c. cv.	Scarborough Corporation Act 1925.	Section 24.

PRINTED IN ENGLAND BY OYEZ PRESS LIMITED
FOR W. J. SHARP

Controller and Chief Executive of Her Majesty's Stationery Office and
Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

£1.85 net

ISBN 0 10 512885 6



Scarborough Borough Council Act 1985

CHAPTER xxviii

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Citation and commencement.
2. Interpretation.

PART II

CLIFF LIFT

3. Cliff lift undertaking.
4. Council may operate cliff lift.
5. Council may charge.
6. Motive power.

PART III

CLIFF RAILWAY

Section

7. Cliff railway undertaking.
8. Council may work cliff railway.
9. Council may charge.
10. Motive power.
11. Restrictions on operation of North Bay railway.
12. Restrictions on operation of St. Nicholas railway.
13. Byelaws.
14. Lease of cliff railway undertaking.
15. Lessee to insure.

PART IV

MISCELLANEOUS AND GENERAL

16. Travel concessions.
17. Application of general provisions of Public Health Act 1936.
18. Restriction on right to prosecute.
19. Repeals.

SCHEDULE—Enactments repealed.